

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE:
Mental Health Counselor License of

CHRISTY JOHNSTON
License No. 00773
Respondent

CASE NO. 20-0067

**COMBINED STATEMENT OF
CHARGES, SETTLEMENT
AGREEMENT, AND FINAL ORDER**

COME NOW the Iowa Board of Behavioral Science ("Board") and Christy Johnston ("Respondent"), 1354 60th St, Des Moines IA 50311, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order ("Order") pursuant to Iowa Code sections 17A.10 and 272C.3(4), and 645 IAC 12. The Board has jurisdiction over Respondent and the subject matter of this case pursuant to Iowa Code chapters 17A, 147, 154D, and 272C, and 645 IAC 33.

A. STATEMENT OF CHARGES

COUNT I

1. Respondent is charged with unethical conduct, including betrayal of a professional confidence and engaging in a professional conflict of interest, and may be disciplined pursuant to Iowa Code section 147.55(3) and 645 IAC 33.2(29).

B. FACTUAL CIRCUMSTANCES

2. Respondent holds mental health counselor license number 00773, which is currently active through September 30, 2020.

3. Respondent disclosed the identity of a client/former client to another individual.

4. Respondent disclosed personal information during therapy that did not advance a therapeutic purpose.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

5. The Board has jurisdiction over the parties and the subject matter of this proceeding.

6. Respondent acknowledges that the allegations in the Statement of Charges, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.

7. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.

8. Respondent acknowledges that she has the right to be represented by counsel on this matter.

9. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

10. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

11. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

12. This Order shall not be binding as to any new complaints received by the Board.

13. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

14. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

15. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

16. Respondent is **CITED** for betrayal of a professional confidence and engaging in a professional conflict of interest and **WARNED** that future violations may result in further disciplinary action.

17. Respondent shall complete all of the following remediation prior to December 31, 2020:

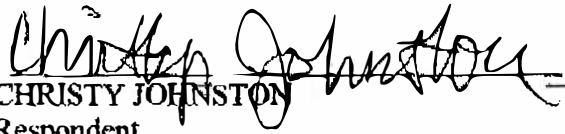
- a. Complete six (6) hours of continuing education related to ethics and professional boundaries. Respondent shall submit certificates of completion to the Board as proof of completion of this requirement. These hours are in addition to the standard continuing education requirements for license renewal and cannot be used to satisfy the required hours for license renewal.
- b. Respondent shall attend a minimum of two (2) supervision sessions with a supervisor who has been pre-approved by the Board. The supervisor must be an Iowa licensed mental health counselor with no disciplinary history and training in supervision who can objectively discuss what led to the violations and consult with Respondent on how to integrate practice changes to prevent future violations from occurring. Respondent shall attend additional supervision sessions if recommended by the supervisor.
- c. Respondent shall submit an essay to the Board describing what she learned from this experience, including from the continuing education and

supervision sessions, and how she has incorporated this knowledge into her practice.

- d. The information required to be submitted to the Board pursuant to this paragraph should be mailed to the Iowa Board of Behavioral Science, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to Tony.Alden@idph.iowa.gov.

18. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.

7/7/20
Date


CHRISTY JOHNSTON
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Behavioral Science on July 13, 2020


Board Executive
Iowa Board of Behavioral Science